COLORADO

Chief Information Officer & Executive Director

Governor's Office of Information Technology

TS-OEA-001: Technology Accessibility for Persons with Disabilities

Document ID	TS-OEA-001
Title	Technology Accessibility for Persons with Disabilities
Executive Sponsor	Office of Enterprise Architecture (OEA), Director of Enterprise Architecture
Issuing Authority	Governor's Office of Information Technology (OIT)
Applies to	OIT and OIT-supported agencies, employees of OIT, and vendors contracted by OIT or its stakeholders; enforceable for IT information or services made available for public use and wherever employees or stakeholders have needs under Section 508 / WCAG 2.1 AA / C.R.S. 24-85-101 to -104.
Instrument Type	Standard
Version	6.0
Effective Date	09/28/2023
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1. Purpose

OIT is statutorily obligated to provide IT support and services to the state and its stakeholders in the most effective and efficient manner possible (as defined by C.R.S. 24-37.5-101, et seq.). To satisfy stakeholder needs surrounding Information Technology Accessibility for Persons with Disabilities, this document is submitted as the standard for all information technology assets that provide an IT service subject to its scope.

This document communicates the standards OIT has developed with the intent of providing enterprise standard configurations for technologies that provide service to those with disabilities, in accordance with the technical standards provided by Section 508 of the U.S. Rehabilitation Act of 1973 (Chapters 3, 4, 6), the Worldwide Web Consortium Web Content Accessibility Guidelines (WCAG) 2.1 Level AA or higher, and pursuant to C.R.S. 24-85-101 to 24-85-104, Article 85 ("Information Technology Access for Individuals Who Are Blind or Visually Impaired").

The ultimate purpose of this standard is to describe the minimum requirements for designing, installing, securing, monitoring, maintaining, protecting, and decommissioning technologies that provide service to those with disabilities.

2. Scope

These standards apply to OIT and OIT-supported agencies. This standard shall be used by employees of OIT, agencies supported by OIT, and vendors contracted by OIT or its stakeholders, as a means to facilitate technology implementation and assist in making the usage, support, and/or purchase of technologies more consistent and efficient. OIT intends to support and work with vendors and other interested parties to implement information technology in a manner best positioned for accessible use, and may also engage in research, development, and consideration of emerging technologies not yet fully meeting accessibility needs.

This standard shall only be enforceable for IT information or services made available for public use, and in any case where state employees or stakeholders exhibit needs as defined by Section 508 Chapters 3, 4, 6; WCAG 2.1 Level AA or higher; and C.R.S. 24-85-101 to 24-85-104, Article 85, as follows:

- Nothing in Article 85 requires the installation of software or peripheral devices used for nonvisual access when the information technology is being used by individuals who are not blind or visually impaired, nor requires the purchase of nonvisual adaptive equipment by a state agency.
- Notwithstanding the above, applications, programs, and underlying operating systems, including the format of data used for manipulation and presentation of information, shall permit the installation and effective use of, and be compatible with, nonvisual access software and peripheral devices.
- Compliance with the procurement requirements of this section for information technology purchased prior to July 1, 2001, shall be achieved at the time of procurement of an upgrade or replacement of existing information technology equipment or software.

Standards instituted for use by approval of the OIT Architecture Review Board (ARB) govern purchase and deployment decisions deemed “go-forward” or “net-new”, and are not intended as a retroactively enforceable mandate for immediate conformance, especially where cost implications may be prohibitive. For guidance or enforcement in conformance to standards, an email request may be sent to OIT_OEA@state.co.us with the subject line “Request for Architecture Review: <projectName/systemName>”.

3. Roles and Responsibilities

Enterprise Architecture - Chief Enterprise Architect

- Chairs and conducts business of the Architecture Review Board (ARB).
- Updates effective date and/or last review date.
- Publishes the ARB-approved Standard to the OIT public-facing website.

Architecture Review Board (ARB)

- Engages stakeholders and subject matter experts to determine the standard.
- Reviews/approves the Standard (this document).

Office of Enterprise Architecture (OEA) - Director of Enterprise Architecture

- Owner of Standard.
- Engages stakeholders and subject matter experts to determine the standard.
- Updates document standards and version number.

- Presents to the Architecture Review Board for approval and adoption.

All OIT staff are responsible for being aware of the existence of this (and all) standard(s) and its purposes of authority and governance in support of OIT's statutorily mandated mission in service of Colorado State Government affairs.

4. Standards

All Information Technology must comply with:

- For all web content and software — W3C WCAG 2.1 level A and AA or higher guidelines.

Note that technology may also need to meet:

- The technical standards contained in US Section 508 of the Rehabilitation Act of 1973, Chapter 3: Functional Performance Criteria.
- The technical standards contained in US Section 508 of the Rehabilitation Act of 1973, Chapter 4: Hardware.
- The technical standards contained in US Section 508 of the Rehabilitation Act of 1973, Chapter 6: Support Documentation and Services.

5. Variance and Exception Process

Any request to procure or deploy technology that is a variance to the standards and provisions stated within this document must be requested of, and approved by, the “Owner of Standard” listed under Roles and Responsibilities.

Requests may be acquired by completing the “EXCEPTION REQUEST to Technical Standard” form and including the completed form (with all signatures) along with other documentation required as part of standard procedures when executing a technology procurement or service deployment.

6. References

- Colorado Information Security Policies (CISPs)
- Section 508 of the U.S. Rehabilitation Act of 1973
- C.R.S. 24-85-104, Article 85, Section 6, “Information Technology Access For Individuals Who Are Blind Or Visually Impaired”
- HB21-1110, “Colorado Laws For Persons With Disabilities”
- SB23-244, “Updates to Technology Accessibility” (includes rulemaking abilities in OIT for accessibility)
- Plain Language Version of the Technology Accessibility Rules
- Worldwide Web Consortium Web Content Accessibility Guidelines 2.1 Level AA (Level AA includes Level A)

Definitions

- Agency, State Agency: The departments, divisions, commissions, boards, bureaus, and institutions as defined in C.R.S. 24-37.5-102(4).
- Alternate formats: Formats usable by people with disabilities, which may include Braille, ASCII text, large print, recorded audio, and electronic formats.
- Alternate methods: Different means of providing information, including product documentation, to people with disabilities — e.g., voice, fax, relay service, TTY, internet posting, captioning, text-to-speech synthesis, and audio description.

- Assistive technology: Any item, piece of equipment, or system used to increase, maintain, or improve functional capabilities of individuals with disabilities.
- Information and Communication Technology (ICT): IT and any equipment or interconnected system used in the creation, conversion, duplication, storage, or delivery of data or information, including telecommunications products, information kiosks and transaction machines, websites, multimedia, and office equipment such as copiers and fax machines. Excludes equipment where embedded IT is integral to a product whose principal function is not the acquisition, storage, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data — unless that embedded IT has an externally available web or computer interface.
- Exception request: A document requesting an exception to a recognized standard, requiring a business or technical justification for granting the exception, subject to review and approval by an authority in the area.
- Operable controls: A component of a product that requires physical contact for normal operation, including mechanically operated controls, input and output trays, card slots, keyboards, or keypads.
- Product: Something physical or digital (software) created through a development or engineering process.
- Telecommunications: The transmission, between or among points specified by the user, of information of the user's choosing, without change in the form or content of the information as sent and received.
- TTY: An abbreviation for teletypewriter, a device enabling people who are deaf, hard of hearing, or speech impaired to use the telephone to communicate by typing rather than talking and listening.
- Undue burden: An action requiring significant financial or administrative difficulty or expense, considering all agency resources available to the relevant program or component.
- WCAG: Web Content Accessibility Guidelines (WCAG) 2.1 cover recommendations for making web content more accessible, including accommodations for blindness and low vision, deafness and hearing loss, limited movement, speech disabilities, photosensitivity, and combinations of these, and some accommodation for learning disabilities and cognitive limitations, across desktops, laptops, tablets, and mobile devices.
- Standard: A rule that specifies a particular course of action or response to a given situation. Standards are mandatory directives to carry out management's policies and are used to measure compliance with policies.
- OEA (Office of Enterprise Architecture): Formed as an office under OIT by Governor's Rule 8 CCR 1501-7.
- OIT (Office of Information Technology): Created and governed by C.R.S. 24-37.5, et seq.